

Tarun Kumar Pathak v. State of U.P. and others

Allahabad High Court · Single Judge · 31 May 2024 · 2024:AHC:99920 · Writ - A No. 6909 of 2023 · **Writ allowed; dismissal of 20.05.2022 and Board appeal of 04.03.2023 quashed; reinstatement with current salary; liberty to proceed from the charge-sheet**

HEADNOTE

A major-penalty dismissal of a PVVNL Executive Engineer, on charges that he released a 10000 KVA single-point connection for a multi-storey project in teeth of Clause 4.9 of the U.P. Electricity Supply Code, 2005 as amended by the 13th Amendment, is vitiated where the Inquiry Committee held no oral inquiry, led no evidence through a Presenting Officer, and treated documents appended to the charge-sheet as self-proving. In a major-penalty inquiry the committee must sit as an impartial tribunal; the Establishment must prove the charges from scratch by documentary and oral evidence, with a right of cross-examination and defence. Interrogating the delinquent is not that inquiry. The Court did not decide whether Clause 4.9, Clauses 4.6/4.6(g), or UPERC's 17.05.2019 51% conversion direction was breached. The Chairman's dismissal dated 20.05.2022 and the Board's appellate order dated 04.03.2023 are quashed; reinstatement with current salary is directed, with liberty to proceed afresh from the charge-sheet.

FACTUAL SUMMARY

Tarun Kumar Pathak, Executive Engineer in Paschimanchal Vidyut Vitran Nigam Ltd., was posted at Electricity Distribution Division-III, Noida from 6 February 2020 to 6 July 2021. A 10000 KVA single-point load for M/s Three C Projects Pvt. Ltd. (Lotus Zing, Plot GH-01/GH-01A, Sector 168, Noida) had been sanctioned in 2011, with demand and agreement in 2012–13. A 500 kW temporary construction connection was energised on 29 January 2019. After taking charge he released the sanctioned load, citing a 17 May 2019 UPERC order that conversion from single-point to multi-point required 51% of occupiers to be willing.

On an anonymous complaint that single-point energisation violated the 13th Amendment to Clause 4.9 of the U.P. Electricity Supply Code, 2005, he was suspended on 6 July 2021 and charge-sheeted on 25 September 2021 on ten charges. The Chairman of U.P. Power Corporation Ltd. dismissed him on 20 May 2022 with recovery of Rs.4,66,764 (8% supervision charges). The Board of Directors dismissed his appeal on 4 March 2023. He said no oral inquiry was held after a 21 December 2021 appearance.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::service-law-natural-justice

Major-penalty inquiry — Establishment must prove charges by oral and documentary evidence through a Presenting Officer

QUESTION

Can a major-penalty dismissal for alleged breach of Clause 4.9 of the Supply Code stand where the Inquiry Committee held no oral inquiry and treated charge-sheet documents as self-proving?

HOLDING

No. The Court did not decide the merits of the ten charges relating to the M/s Three C Projects connection. For a major penalty the Inquiry Committee must convene as an impartial tribunal, distance itself from the Establishment, and require the Establishment to prove the charges from scratch through a Presenting Officer by documentary and oral evidence, with witnesses offered for cross-examination and then an opportunity to the delinquent to enter defence. Charges are dormant allegations, not proof of themselves. The delinquent cannot be made to prove innocence by a gruelling interrogation. Here only 21.12.2021 was scheduled; the petitioner averred that no inquiry was held that day and no later date was fixed, yet a report went to the Chairman. Documents appended to the charge-sheet are not evidence unless formally introduced and proved in the delinquent's presence. The proceedings are vitiated from the charge-sheet stage. Dismissal dated 20.05.2022 and the appellate order dated 04.03.2023 are quashed; reinstatement with current salary is directed. If the respondents proceed afresh from the charge-sheet, arrears abide that event and they may

suspend pending an expeditious inquiry (subsistence without a non-alternative-engagement certificate). If they do not, the petitioner is entitled to 50% emoluments for the period out of service. ¶ 16-21

QUALIFIER

The Court did not decide whether Clause 4.9 as amended, Clauses 4.6 and 4.6(g), or the 17.05.2019 UPERC 51% conversion direction was breached.

FLAG Off-topic for the Supply Code. Charge 1 alleged release of the 10000 KVA single-point Lotus Zing connection in teeth of the 13th Amendment to Clause 4.9 (10.08.2018) and UPERC's 17.05.2019 51% conversion direction; Charges 6–7 invoked Clauses 4.6 and 4.6(g). The counter cited Section 50 of the Electricity Act, 2003 as the source of the 4.9 amendment. No Code clause is construed. Same judge and authorities as SCJ-017 and SCJ-548. Source PDF also contains the 26.05.2023 stay of the Rs.4,66,764 recovery (Ashutosh Srivastava J.) and successive listing orders through reserved-on 08.12.2023; the judgment under record is 31.05.2024 (2024:AHC:99920). Hindi charge-sheet extract is OCR-garbled; English recitals in paras 2–5 and 14 and Charge 1's embedded UPERC quotation are used. Para 8 states the revised estimate as Rs.58,38,552; Charge 9 as Rs.58,34,552 — recorded as the judgment states it.

PRINCIPLE TAGS

natural-justice-in-departmental-inquiry In a major-penalty inquiry charges are not self-proving. The Establishment must lead documentary and oral evidence through a Presenting Officer before an impartial inquiry committee; documents annexed to the charge-sheet are not evidence unless formally proved in the delinquent's presence. A namesake date of appearance, with no later date fixed, does not satisfy that procedure. Same cluster as SCJ-017 and SCJ-548. Lead authorities: *State of Uttar Pradesh v. Saroj Kumar Sinha* [1064026], *Roop Singh Negi v. Punjab National Bank* [1106974], *State of Uttaranchal v. Kharak Singh* [1693089]. ¶ 16-19

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RELEASING THE 10000 KVA SINGLE-POINT CONNECTION FOR M/S THREE C PROJECTS (LOTUS ZING) VIOLATED CLAUSE 4.9 AS AMENDED BY THE 13TH AMENDMENT (10.08.2018)
Charge 1 and the counter (multi-point to eliminate builder intermediaries; amendment under s.50). Petitioner said he released the 2011 sanction in light of UPERC's 17.05.2019 51% conversion order after taking charge in February 2020. Not construed. ¶ 5, 14, 16, 21

NOT DECIDED — WHETHER UPERC'S 17.05.2019 DIRECTION (CONVERSION OF AN EXISTING SINGLE-POINT SANCTION TO MULTI-POINT ONLY IF 51% OR MORE OCCUPIERS ARE WILLING) AUTHORISED RELEASE OF THE 2011 SANCTIONED LOAD
Quoted in Charge 1 and relied on in the petitioner's defence (para 5). Not decided. ¶ 5, 14

NOT DECIDED — WHETHER CLAUSES 4.6 AND 4.6(G) (ESTIMATE VALIDITY OF THREE MONTHS; FINAL ESTIMATE AFTER LINE CONSTRUCTION) WERE BREACHED
Charges 6 and 7. Not decided. ¶ 6, 16

NOT DECIDED — WHETHER THE CHARGE-SHEET REQUIRED THE CHAIRMAN'S APPROVAL UNDER REGULATIONS 6 AND 7 OF THE UPPCL EMPLOYEES (DISCIPLINE AND APPEAL) REGULATIONS, 2020, AND WHETHER THE CHARGES RELATED TO 2011–2019 BEFORE THE PETITIONER'S POSTING
Raised at the 26.05.2023 hearing. The reserved judgment does not decide either point. ¶ 4, 16-21

NOT DECIDED — MERITS OF THE TEN DISCIPLINARY CHARGES AND OF THE RS.4,66,764 RECOVERY (8% SUPERVISION CHARGES ON THE REVISED ESTIMATE)
Quashing is for want of oral inquiry. Liberty to proceed from the charge-sheet. A separate writ against the 05.08.2022 recovery order (Writ-A No. 15140 of 2022) had been dismissed on 23.09.2022; that dismissal is recited, not reopened. ¶ 8-9, 16, 21

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>State of Uttar Pradesh v. Saroj Kumar Sinha</i> (2010) 2 SCC 772 [1064026] Supreme Court	Cited for the settled principle that in a departmental inquiry the Establishment must prove the charges by leading evidence; the inquiry officer is not to treat the charge-sheet as self-proving.		Court	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Roop Singh Negi v. Punjab National Bank</i> (2009) 2 SCC 570 [1106974] Supreme Court	Cited with Saroj Kumar Sinha and Kharak Singh for the Establishment's obligation to prove charges by legal evidence in a departmental inquiry.		Court	Relied on
<i>State of Uttaranchal v. Kharak Singh</i> (2008) 8 SCC 236 [1693089] Supreme Court	Cited for natural justice in disciplinary inquiries: evidence must be led and the delinquent given opportunity to meet it.		Court	Relied on
<i>State of U.P. v. Kishori Lal</i> 2018 (9) ADJ 397 (DB) (LB) Allahabad High Court (DB) (Lucknow Bench)	Bench decision cited in the same catena on the Establishment's burden in a departmental inquiry; no separate holding extracted.		Court	Referred
<i>Smt. Karuna Jaiswal v. State of U.P.</i> 2018 (9) ADJ 107 (DB) (LB) Allahabad High Court (DB) (Lucknow Bench)	Bench decision cited in the same catena on natural justice in disciplinary inquiries; no separate holding extracted.		Court	Referred
<i>State of U.P. v. Aditya Prasad Srivastava</i> 2017 (2) ADJ 554 (DB) (LB) Allahabad High Court (DB) (Lucknow Bench)	Bench decision cited in the same catena on proof of charges in a departmental inquiry; no separate holding extracted.		Court	Referred